

PCU318630 Brambila, Leonor vs. Familia Partida, LLC, a California Limited Liability Company et al

County: tulare

Division: Civil Law and Motion

Department: 15

Hearing date: 2026-08-24

Motion: Plaintiff's Motion to Compel Initial Verified Responses and to Deem Admissions Admitted or Alternatively to Compel Verified Responses to Requests for Admissions; Sanctions

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Re: Brambila, Leonor vs. Familia Partida, LLC, a California Limited Liability Company et al

Case No.: PCU318630

Date: August 24, 2026

Time: 1:30 P.M.

Dept. 15-The Honorable Gary M. Johnson

Motion: Plaintiff's Motion to Compel Initial Verified Responses and to Deem Admissions Admitted or Alternatively to Compel Verified Responses to Requests for Admissions; Sanctions

Tentative Ruling: To deny the motions; to impose sanctions against Plaintiff's counsel Goodrich in the amount of \$275, due no later than thirty (30) days from the date of this hearing.

Facts

On April 3, 2026, Plaintiff served written discovery on Defendants, including Form Interrogatories-General, Form Interrogatories-Employment Law, Special Interrogatories, Requests for Production of Documents, and Requests for Admission, Set One.

Defendant served responses on May 6, 2026. Plaintiff indicates the responses were not verified and that "Defendants' responses consisted of objections and did not provide substantive discovery. Defendants did not answer interrogatories, did not produce documents, and did not admit or deny requests for admission." (Declaration of Goodrich ¶¶3, 4, 5, 6.)

On June 8, 2026, Plaintiff's counsel met and conferred with Defendant's counsel regarding the responses.

Counsel for Plaintiff declares "Defense counsel represented during the June 8, 2026 telephone conference that Defendants would provide substantive responses." (Declaration of Goodrich ¶10.) No substantive, amended responses have been provided.

On July 23, 2026, Plaintiff filed this motion to compel initial verified responses to the above discovery, or, as the requests for admissions, to deem the admissions admitted.

In opposition, Defendant takes the position that this motion is to compel further responses, is untimely, lacked a proper meet and confer, that objection only response need not be verified, that no separate statement is provided and sanctions are unwarranted.

In support, counsel for Defendant declares, as to the June 8, 2026 conversation "The conversation did not consist of a request-by-request discussion identifying each disputed interrogatory, request for production, or request for admission, nor did it include a response-by-response proposal for resolving the objections." (Declaration of Garcia ¶7.)

Additionally, additional counsel for Defendant states:

4. On June 5, 2026, counsel for the parties exchanged emails concerning a telephone conference between Rebecca Garcia and Mr. Goodrich. On June 8, 2026, Ms. Garcia and Mr. Goodrich participated in that telephone conversation. On June 9, 2026, Mr. Goodrich sent an email stating: "Thank you for taking the time to speak with me yesterday. As discussed, I am attaching a settlement demand. Please let me know your client's response as soon as possible." A true and correct copy of the June 5-10, 2026 email chain is attached as Exhibit B.

5. On June 10, 2026, Nick Pritchett, sent an email (to which I am a CC'ed recipient) stating: "We will work toward providing meaningful responses to your firm on or before June 26, 2026. That should give us time to discuss possible settlement." (Ex. B.)

6. The June 10 email did not expressly grant Plaintiff an extension of the statutory deadline to move to compel further responses, did not refer to the 45-day deadline, and did not waive Defendants' right to assert that a motion filed after the deadline was untimely.

...

10. On August 3, 2026, I sent a follow-up email to Mr. Goodrich requesting to discuss settlement and to meet and confer regarding the outstanding discovery motion and responses. A true and correct copy of that email is attached as Exhibit E.

11. Neither email granted Plaintiff an extension of time to file a motion to compel, waived any deadline, or represented that Plaintiff could delay filing until July 23, 2026.

12. Mr. Goodrich did not respond to my July 27 email. He also did not respond to my August 3 follow-up email." (Declaration of Landaverde ¶¶4-6, 10-12.)

In reply, Plaintiff states "Plaintiff agreed to extend Defendants' discovery-response deadline from June 1, 2026 to June 15, 2026; and defense counsel agreed in writing to "a coextension for you to file your motion to compel." (Landaverde Decl., Ex. B.) Defendants then stated they would "work toward providing meaningful responses" by June 26, 2026, but did not serve substantive discovery. (Landaverde Decl., Ex. B.)" (Reply 2:4-8.)

Further, that the May 29, 2026 email from Garcia to Goodrich stated "Thank you counsel for the extension, we agree to a coextension for you to file your motion to compel" in response to Goodrich stating "We agree to the two-week extension requested for Defendants' discovery responses, extending the deadline from June 1, 2026 to June 15, 2026." (Declaration of

Authority and Analysis

To start, the general rule is that unsworn responses are tantamount to no responses. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) When no responses are received, there is no 45-day time limit to file a motion to compel initial responses and a motion to deem admissions admitted. (Code Civ. Proc, § 2030.290(a).)

However, because these responses at issue here consisted solely of pure objections on various legal grounds, no client verification was required under Code of Civil Procedure §2031.250(a), the discovery has been responded to and a motion to compel further responses within the 45 day time period (plus service) is required. The court in *Food 4 Less Supermarkets, Inc v. Superior Court* (1995) 40 Cal.App.4th 651, 657 summarizes this issue as follows:

"In contrast, subdivision (g) of section 2031 specifically provides that a response containing 'only objections' need not be signed by the party. The reason is clear. As Blue Ridge so cogently observed: '[O]bjections are legal conclusions interposed by counsel, not factual assertions by a party...' [citation omitted] That is, an objection is based upon counsel's legal analysis of the matter (e.g., the document is privileged) as compared to a response which is based upon a party's factual representation of the matter (e.g., the document does not exist). There is absolutely no reason to require a party to verify an objection. It is sufficient to have the attorney sign the objection(s). If the attorney is wrong, the court will so decide after conducting the appropriate proceedings to determine if, for instance, the claim of privilege lies. Requiring the objection to be verified by the party would add nothing to the trial court's analysis. (emphasis in original.)

Therefore, the 45 day period applies because section 2031.250(a), for instance, states an objection-only response need not be verified, an objection is a code-compliant response, an objection-only response cannot be construed as the equivalent of no response at all in the same way untimely or unverified substantive responses are considered. (See also sections 2033.230, 2033.240(a) as to admissions; sections 2030.240 and 2030.250 as to interrogatories.) According to Weil & Brown, "...the 45-day limit probably also applies where the response is unverified and includes only objection [Y]ou should serve your motion within 45 days of unverified objections." (Civil Procedure Before Trial, Ch.8:1492.4.)

First, the Court has reviewed the discovery responses at issue. They appear to the Court to be pure objections. Therefore, the general rule of *Appleton* does not apply and no motion lies to verify objection only responses. There is no motion to compel initial responses or motion to deem admissions admitted where timely, objection only responses were served. There is no failure to respond where objection only responses are provided. Rather, as noted above, only a motion to compel further responses is proper.

Second, the Court accepts that the May 29, 2026 email exchange mutually extended a time period for Defendants to provide supplemental responses and Plaintiff's time to bring a motion to compel further responses. However, this provided, at most, a one time, two week extension on the motion to compel further period.

Plaintiff had 45 days from the May 6, 2026 service of the objection only responses, plus an extension based on the manner served. No party appears to have indicated to the Court how Defendant's May 6, 2026 responses were served. The Court will assume they were served by mail here and provide an additional five (5) days based on this assumption.

As such, the Court calculates June 25, 2026 as the initial 45 day period. Extended an additional two weeks pursuant to the May 29, 2026 email places the agreed upon date to file the motion to compel further responses on July 9, 2026. Absent a further extension, in writing, this appears to be the last day to file a motion to compel further responses. Therefore, this motion is untimely. The 45-day requirement (plus extensions for service) is jurisdictional and mandatory and a late filed motion to compel must be denied. (*Sexton v. Sup. Ct. (Mullikin Med. Ctr.)* (1997) 58 Cal.App. 4th 1403, 1410.)

Third, even if the motion were timely, the Court cannot ignore that Plaintiff has brought this motion as a motion to compel initial responses and therefore has not filed a separate statement or a sufficient meet and confer declaration.

A motion to compel must be accompanied by a meet and confer declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code of Civil Procedure 2016.040, 2031.310(b)(2) [as to requests for production].)

The meet and confer requirement is designed "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016, quoting Townsend v. Superior Ct. (1998) 61 Cal.App.4th 1431, 1435, internal quotations and citations omitted.) Thus, there must be a serious effort at negotiation and informal resolution. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

"[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Id.) The particular level of effort required in each case depends on the circumstances including the amount of discovery propounded, the time available to confer before the motion filing deadline, and the extent to which a party was complicit in the lapse of available time. (Obregon v. Superior Ct. (1998) 67 Cal.App.4th 424, 432.) "An evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered. Although some effort is required in all instances, the level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success." (Id. at pp. 432–33.) To that end, trial courts are entrusted with discretion and judgment to determine the necessary effort required to satisfy the requirement of an informal resolution. (Id. at 433.)

It is unclear what exactly the substance of the June 8, 2026 telephonic meet and confer consisted of, but the Court lacks a sufficient declaration indicating a sufficient meet and confer process occurred under the standard above.

Fourth, no separate statement has been filed pursuant to California Rule of Court, rule 3.1345(a)(1), (2), and (3) and the Court denies the motion on this basis. (See Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893; St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 777-778.)

Sanctions

Both sides request sanctions.

While the Court agrees that Plaintiff's motion must be denied for the reason above, the Court finds Defendants' request for \$2,868.75 to respond to this motion excessive.

The Court will permit one hour at Counsel Landaverde's rate of \$275 under Code of Civil Procedure sections, 2030.300(d) (Interrogatories), 2031.310 (h) (Request for Production of Documents), 2033.290 (d) (Request for Admissions) and 2022.020 (failure to meet and confer). Sanctions are imposed against Plaintiff's counsel Goodrich and are due no later than thirty (30) days from the date of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.